

16.	26PR0205	MATTER OF ROSS FAMILY LIVING TRUST A
PETITION FOR INSTRUCTIONS		

On July 10, 2026, Petitioner, Glen Keith Ross (“Petitioner” or “Trustee”) filed a Petition for Instructions. Proof of service of notice of hearing was filed on July 24, 2026. No opposition has been filed.

Background

Clifford H. Ross, Jr. (“Deceased Settlor”) and Patricia A. Ross (“Surviving Settlor”) established the Ross Family Living Trust on May 5, 1998. After Deceased Settlor’s death, Surviving Settlor allocated all assets of the Ross Family Living Trust to the Ross Family Living Trust A on March 30, 2006. No Trust B was established, and no assets were allocated to such trust. On April 2, 2015, Surviving Settlor amended and restated the Ross Family Living Trust A in its entirety. On February 20, 2025, Surviving Settlor amended the Ross Family Living Trust A (“Amendment”).

Pursuant to the terms of the Amendment, Petitioner is acting as successor Trustee due to the current incapacity of Surviving Settlor. Petitioner provides that Surviving Settlor currently resides in a memory care facility and due to her current condition, it is not medically feasible or reasonable for her to return to her primary residence located at 2329 Brannan Way, El Dorado Hills, CA 95762 (the “Subject Property”). Petitioner proposed selling the Subject Property which was met by an objection by Surviving Settlor’s daughter, Susan Kelli Ross aka Kellie Ross. All of Surviving Settlor’s other children have consented to the sale of the Subject Property.

Legal Principles

Probate Code § 17200, in part, provides:

- (a) Except as provided in Section 15800, a trustee or beneficiary of a trust may petition the court under this chapter concerning the internal affairs of the trust or to determine the existence of the trust.
- (b) Proceedings concerning the internal affairs of a trust include, but are not limited to, proceedings for any of the following purposes:
 - (6) Instructing the trustee.

Discussion

Petitioner requests the Court authorize him to sell the Subject Property. Petitioner asserts that it is in Surviving Settlor’s best interest to sell the Subject Property rather than to continue to maintain it at a loss to the Trust Estate or to expose the Trust to potential liability by renting the Subject Property to a third party.

A preliminary Trust accounting was provided of Surviving Settlor’s income and expenses from 2024 to present. The accounting indicates that Surviving Settlor’s income is approximately

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\$12,500/month; the cost to maintain the Subject Property is approximately \$2,900/month; the cost of Surviving Settlor's memory care facility is approximately \$8,500/month; and Surviving Settlor's miscellaneous monthly expenses on average are approximately \$1,300/month, which equates to a loss of approximately \$200/month.

TENTATIVE RULING #16:

ABSENT OBJECTION THE PETITION FOR INSTRUCTIONS IS GRANTED AUTHORIZING THE TRUSTEE TO SELL THE SUBJECT PROPERTY. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT AT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR BY ZOOM, PLEASE CONTACT THE COURT AT (530) 621-5867 AND MEETING INFORMATION WILL BE PROVIDED.